

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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EDMUND GITTENS,

Plaintiff,

COMPLAINT

09 CV 9805 (LTS)

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, POLICE OFFICER JUAN
INOA (BADGE NO. 20964), JOHN DOE

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action, brought pursuant to 42 U.S.C. § 1983, alleging misconduct by the City of New York and officers employed by the New York City Police Department (“NYPD”) and the New York City Department of Correction (“DOC”). Plaintiff alleges that, on January 26, 2009, NYPD officers subjected him to false arrest, false imprisonment, excessive force, an illegal strip search, fabrication of evidence, and malicious prosecution in violation of the Fourth, Sixth and Fourteenth Amendments to the Constitution. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney’s fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Southern District of New York and the events in question occurred in the Southern District

PARTIES

4. Plaintiff is a resident of the State of New York.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Juan Inoa is a member of the NYPD who was involved in the arrest of plaintiff, and the events arising out of plaintiff's arrest, on January 26, 2009. Inoa is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Inoa is sued in his individual capacity.

7. Police Officers John Doe is a member of the NYPD who was involved in the arrest of plaintiff, and the events arising out of plaintiff's arrest, on January 26, 2009. Doe is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Doe is sued in his individual capacity.

STATEMENT OF FACTS

8. On January 26, 2009, at approximately 4:00 p.m. as plaintiff was exiting 1365 5th Avenue in New York, New York, he was unlawfully approached, searched and seized by Inoa and John Doe.

9. Plaintiff had committed no crime and possessed no contraband.

10. Despite plaintiff 's lack of culpable conduct, the officers arrested plaintiff and charged him with Resisting Arrest and Disorderly Conduct.

11. During the course of plaintiff's arrest, Inoa and Doe, acting in concert, threw plaintiff to the ground and unlawfully handcuffed plaintiff in an excessively tight manner, causing marks on plaintiff's wrists.

12. The officers ignored plaintiff's requests to loosen the cuffs.

13. Plaintiff was subsequently transported to the PSA-5 Precinct for arrest processing. While at the precinct, plaintiff was forced to strip nude in front of numerous officers.

14. Plaintiff was subsequently taken to New York Central Booking to await arraignment.

15. While plaintiff was in Central Booking, Officer Inoa and his fellow officer, acting in concert and with malice, conveyed false information to prosecutors in order to have plaintiff prosecuted for Resisting Arrest and Disorderly Conduct.

16. On January 27, 2009, plaintiff was arraigned in Criminal Court, New York County and released on his own recognizance.

17. After numerous court appearances, all criminal charges filed against plaintiff were dismissed.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
OFFICER JUAN INOA AND JOHN DOE**

18. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-17 as if fully set forth herein.

19. The conduct of Juan Inoa and John Doe, as described herein, amounted to an illegal entry into plaintiff's residence, an illegal search of plaintiff's residence, false arrest, false imprisonment, two illegal strip searches, excessive force, fabrication of evidence, and malicious prosecution in violation of the Fourth, Sixth and Fourteenth Amendments to the Constitution and 42 U.S.C. § 1983.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
THE CITY OF NEW YORK CONCERNING
THE CONDUCT OF ITS POLICE
DEPARTMENT**

20. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-19 as if fully set forth herein.

21. The City of New York, through the actions of the NYPD, directly caused the constitutional violations suffered by plaintiff.

22. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations, that many of its police officers, including the individual defendants, are unfit officers who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

23. The aforesaid conduct by the City of New York violated plaintiff's rights under the Fourth, Sixth and Fourteenth Amendments to the Constitution and 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: November 27, 2009
New York, New York

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